

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

CASE OF BOYARSHINOV AND OTHERS v. RUSSIA

(Applications nos. 2829/18 and 14 others –
see appended list)

JUDGMENT

STRASBOURG

5 October 2023

This judgment is final but it may be subject to editorial revision.



In the case of Boyarshinov and Others v. Russia,

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 14 September 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some of them also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Misan v. Russia* no. 4261/04, § 70, 2 October 2014, and *Kruglov and Others v. Russia*, nos. 11264/04 and 15 others, §§ 123-38, 4 February 2020, as to various shortcomings related to police searches at the applicants' premises; *Elvira Dmitriyeva v. Russia*, nos. 60921/17 and 7202/18, §§ 77-90, 30 April 2019, concerning administrative convictions for making calls to participate in public events; *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, §§ 106-225, 26 April 2016, related to disproportionate measures taken by the authorities against participants of solo manifestations; *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, and *Tsvetkova and Others*, cited above, §§ 178-88, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention; *Korneyeva*, cited above, §§ 62-65, as to the right of organisers or participants of public assemblies not to be tried and punished twice for the same offence.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of the fairness of their administrative-offence proceedings. In view of the findings in paragraphs 9-11 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

155. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 5 October 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	María Elósegui
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
1.	2829/18 26/12/2017	**Andrey Vladimirovich BOYARSHINOV** 1984	Nurgaleyev Danil Ilnurovich Kazan	Anti-corruption rally Kazan 14/05/2017	article 20.2 § 5 of CAO	community service of 35 hours	Supreme Court of the Tatarstan Republic, adopted on 21/06/2017 in the applicant's absence and received on 26/06/2017	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", until the respective hearings on the applicant's administrative-offence cases: - from 3.00 p.m. on 18/05/2018 to 10.40 a.m. on 19/05/2018, - from 9.25 p.m. on 08/09/2018 to 09/09/2018; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decisions: Supreme Court of the Tatarstan Republic, 21/06/2017, 03/08/2017, 25/05/2018, 18/09/2018 and 05/05/2021; Art. 10 (1) - disproportionate measures against solo demonstrators - on 01/08/2020 the applicant participated in a solo demonstration to support S. Furgal.	7,000
				Anti-corruption rally (in support of Mr Navalnyy) Kazan 08/07/2017	article 20.2 § 8 of CAO	administrative detention of 15 days	Supreme Court of the Tatarstan Republic 03/08/2017		
				Anti-corruption rally Kazan 05/05/2018	article 20.2 § 8 of CAO	administrative detention of 20 days	Supreme Court of the Tatarstan Republic 25/05/2018		

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
								He was convicted under article 20.2 § 2 of CAO and sentenced to 7 days of administrative detention. Final decision: Supreme Court of the Tatarstan Republic, 20/08/2020; Art. 10 (1) - conviction for making calls to participate in public events - two counts: 1) On 08/09/2018 the applicant was arrested in his flat for publishing a post in Vkontakte calling to participate in a rally against the pension reform. He was convicted under art. 20.2 § 8 of the CAO and sentenced to 15 days of administrative detention. Final decision: Supreme Court of the Tatarstan Republic, 18/09/2018; 2) On 20/04/2021 the applicant was arrested in his flat for publishing a post in Vkontakte calling to participate in a rally to support A. Navalnyy. He was convicted under art. 20.2 § 8 of the CAO and sentenced to 20 days of administrative detention. Final decision: Supreme Court of the Tatarstan Republic, 05/05/2021; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - three counts: the sentences of administrative detention imposed on the applicant by the court of first instance following the events of 05/05/2018, 08/09/2018 and 19/08/2020 were executed immediately,	

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								on account of the lack of suspensive effect of an appeal under the CAO Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for his participation in the same non-notified public event of 14/05/2017: under art. 19.3 § 1 of CAO (administrative detention of 12 days, final decision of 06/06/2017) and under Art. 20.2 § 5 of CAO (community service of 35 hours, final decision received on 26/06/2017)	
2.	2933/18 25/12/2017	**Sergey Aleksandrovich STREMIDLO** 1979	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally St Petersburg 12/06/2017	article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 13/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: St Petersburg City Court, 13/07/2017	3,500
3.	3569/18 20/12/2017	**Diana Anatolyevna KARIMOVA** 1996	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally St Petersburg 12/06/2017	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	administrative detention of 5 days, and fine of RUB 10,000	St Petersburg City Court, 20/06/2017 and 18/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: St Petersburg City Court, 20/06/2017 and 18/07/2017; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant on 13/06/2017 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	4,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
4.	18385/18 01/12/2017	**Yelena Yuryevna BLINOVA** 1978	Romanov Pavel Valeryevich Cheboksary	Opposition rally Cheboksary 16/04/2017 Opposition rally Cheboksary 29/10/2017	article 20.2 § 2 of CAO article 20.2 § 8 of CAO	fine of RUB 10,000 (charges requalified on appeal to article 20.2 § 1 of CAO) fine of RUB 200,000	Supreme Court of the Chuvashia Republic 01/06/2017 Supreme Court of the Chuvashia Republic 12/12/2017		5,000
5.	29300/18 11/06/2018	**Irina Ivanovna LYASHCHENKO** 1960	Pershakova Yelena Yuryevna Perm	Rally in support of Mr A. Navalnyy Berezniki, Perm Region 07/10/2017	article 20.2 § 5 of CAO	community service of 24 hours	Perm Regional Court 28/12/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Perm Regional Court, 28/12/2017	4,000
6.	29304/18 11/06/2018	**Roman Aleksandrovich KOROTAYEV** 1978	Terekhov Konstantin Ilyich Moscow	Rally in support of Mr A. Navalnyy Berezniki, Perm Region 07/10/2017	article 20.2 § 5 of CAO	30 hours of community works	Perm Regional Court 26/12/2017		4,000

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7.	29495/18 09/06/2018	**Irina Stepanovna NORMAN** 1993	Zhdanov Ivan Yuryevich Vilnius	Rally in support of Mr A. Navalnyy Yekaterinburg 07/10/2017	article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 12/12/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Sverdlovsk Regional Court, 12/12/2017 Art. 8 (1) - unlawful search - search in the applicant's apartment on 21/04/2021, authorised *post factum* on 22/04/2021 by the Leninskiy District Court of Yekaterinburg, appeal dismissed on 26/08/2021 by the Sverdlovsk Regional Court. No sufficient reasons for the search (the ground invoked was that the applicant could be Mr Navalnyy's supporter), broad wording of the search warrant, stereotyped reasoning	4,500
8.	39063/18 07/08/2018	**Olga Andreyevna IVANOVA** 1965	Zhdanov Ivan Yuryevich Vilnius	Rally in support of Mr A. Navalnyy's candidacy for the presidential election Volgograd 28/01/2018	article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 07/02/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 3.10 p.m. on 28/01/2018 to the beginning of the hearings on the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
								offence proceedings – final decision: Volgograd Regional Court, 07/02/2018	
9.	41987/18 30/07/2018	**Aleksandr Yevgenyevich BOLDYREV** 1968	Sivoldayev Ilya Vladimirovich Moscow	Rally against constitutional amendments Voronezh 01/08/2020 Rally in support of Belarus Voronezh 24/10/2020 Opposition rally related to journalists' killings Voronezh 07/10/2017	article 20.2 § 1 of CAO article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 20,000 fine of RUB 20,000 fine of RUB 10,000	Voronezh Regional Court 19/11/2020 Voronezh Regional Court 28/05/2021 Voronezh Regional Court 30/01/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.00 p.m. on 28/01/2021 to 29/01/2021 (when the applicant's trial on the administrative-offence related to his calls to participate in an unauthorised public event started); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Voronezh Regional Court, 30/01/2018, 19/11/2020, 04/02/2021 and 28/05/2021; Art. 10 (1) - conviction for making calls to participate in public events - conviction for an administrative offence for calling on the public to participate in an unauthorised public event: article 20.2 § 8 of the CAO, administrative detention of 7 days. Final decision: Voronezh Regional Court, 04/02/2021; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal –	6,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
								the sentence of administrative detention of 7 days imposed on the applicant by the court of first instance under art. 20.2 § 8 of the CAO was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	
10.	45043/18 12/09/2018	**Andrey Grigoryevich IRINARKHOV** 1986	Zhdanov Ivan Yuryevich Vilnius	Rally in support of Mr A. Navalnyy as candidate for the presidency of Russia Ufa 28/01/2018	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Bashkortostan Republic 14/03/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Supreme Court of the Bashkortostan Republic, 14/03/2018	3,500

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11.	45228/18 18/09/2018	**Irina Alekseyevna ZENINA** 1952	Gak Irina Vladimirovna Rostov-on-Don	Rally in support of Mr A. Navalnyy Rostov-on-Don 24/12/2017 Rally in support of Mr A. Navalnyy Rostov-on-Don 31/01/2021	article 20.2 § 6.1 of CAO article 20.2 § 6.1 of CAO	fine of RUB 15,000 fine of RUB 10,000	Rostov Regional Court 20/03/2018 Rostov Regional Court 17/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.30 to 6.30 p.m. (when the applicant's trial on the administrative offence started) on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decisions: Rostov Regional Court, 20/03/2018 and 17/03/2021	4,000
12.	46156/18 21/09/2018	**Roman Sergeyevich SHCHERBAKOV** 1988	Zhdanov Ivan Yuryevich Vilnius	Rally against the refusal to register A. Navalnyy's candidacy for the 2018 presidential election Tula 28/01/2018	article 20.2 § 5 of CAO	fine of RUB 10,000	Tula Regional Court 22/03/2018 Tula Regional Court	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": -from 02.05 to 07.00 p.m. on 28/01/2018 (the time indicated by the police officers was at variance with the real applicant's time of deprivation of liberty), - from 02.40 to 07.00 p.m. on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a	4,000

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				Rally in support of Mr A. Navalnyy Tula 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	22/06/2021	prosecuting party in administrative-offence proceedings – final decisions: Tula Regional Court, 22/03/2018 and 22/06/2021	
13.	50044/18 10/10/2018	**Yekaterina Andreyevna YANSHINA** 1996	Zhdanov Ivan Yuryevich Vilnius	Rally against Mr Putin's re-election as President Voronezh 05/05/2018	article 20.2 § 5 of CAO, article 19.3 § 1 of CAO	fine of RUB 5,000 and 2 days of administrative detention	Voronezh Regional Court, 04/06/2018 and 04/07/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.30 p.m. on 05/05/2018 to 06/05/2018 (hearings in the applicant's administrative-offence case under art. 20.2 § 5 of the CAO); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decisions: Voronezh Regional Court, 04/06/2018 and 04/07/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for her participation in the same public event: under art. 19.3 § 1 of the CAO (appeal on 04/07/2018, 2 days of detention), and under art. 20.2 § 5 of the CAO (appeal on 04/06/2018, fine of RUB 5,000)	4,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
14.	50047/18 10/10/2018	**Pavel Anatolyevich POTASHOV** 1998	Zhdanov Ivan Yuryevich Vilnius	Rally against Mr Putin's re-election as President Voronezh 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 14/06/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Voronezh Regional Court, 14/06/2018	3,500
15.	54306/18 09/11/2018	**Ivan Aleksandrovich SILAYEV** 1978	Gaynutdinov Damir Ravilevich Kazan	Rally against Mr Putin's re-election as President St Petersburg 05/05/2018	article 20.2 § 5 of CAO, article 19.3 § 1 of CAO	fine of RUB 15,000 and 6 days of administrative detention	St Petersburg City Court 24/05/2018 and 10/05/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.00 p.m. on 05/05/2018 to 09.00 a.m. on 06/05/2018 (hearings in the applicant's administrative-offence case); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decisions: St Petersburg City Court 24/05/2018 and 10/05/2018; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO;	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
								Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event: under art. 19.3 § 1 of the CAO (appeal on 10/05/2018, 6 days of detention) and under art. 20.2 § 5f the CAO (appeal on 24/05/2018, fine of RUB 15,000)	

[1] Plus any tax that may be chargeable to the applicants.